

		179-80. It requires a person to have suffered injury in fact and have lost money or property as a result of unfair competition in order to have standing for a UCL cause of action. <i>Pfizer Inc. v. Superior Court</i> (2010) 182 Cal.App.4th 622, 630. In <i>Korea Supply Co. v. Lockheed Martin Corp.</i>, the California Supreme Court ruled that restitution is a remedy for violation of section 17200 but “nonrestitutionary disgorgement,” which is akin to damages, is not. <i>Id.</i>, 29 Cal. 4th at 1144-51. “In the context of the UCL, ‘restitution’ is limited to the return of property of funds in which plaintiff has an ownership interest (or is claiming through someone with an ownership interest).” <i>Madrid v. Perot Systems Corp.</i> (2005) 130 Cal.App.4th 440, 453. “Thus, the California Supreme Court has defined a UCL order for restitution as one ‘compelling a UCL defendant to return money obtained through an unfair business practice to those persons in interest from whom the property was taken, that is, to persons who had an ownership interest in the property or those claiming through that person.’” <i>Id.</i> “The California Supreme Court has held that, while <i>restitutionary</i> disgorgement [of profits] may be an available remedy under the UCL, <i>nonrestitutionary</i> disgorgement [of profits] is <i>not</i> available in a UCL individual action or in a UCL <i>representative</i> action....” <i>Id.</i> at 460. Here, Plaintiff has not alleged that Defendant holds property or funds that Plaintiff has an ownership interest in. Rather, he seeks his “economic loss.” [SAC, ¶ 125.] He calls this restitution, but it is not. [<i>Id.</i>] In his prayer, Plaintiff prays for injunctive relief but he does not allege ongoing conduct that would give rise to the need for or right to an injunction. For this reason, the demurrer to this cause of action is sustained. Case Management Conference Continued to August 10, 2026 at 9:00 a.m.
4	Kim vs. Kim 2024-01376224	1. Motion for Protective Order 2. Motion to Compel Deposition (Oral or Written) 3. Order to Show Cause re: Monetary Sanctions Off Calendar